

Veena D/O Prabhakar Ozarkar Alias Veena ... vs Shri. Deepak Madhukar Ozarkar And Anr on 27 February, 2023

Author: Madhav J. Jamdar

Bench: Madhav J. Jamdar

18.wp.15044.22.doc

Harish

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION
WRIT PETITION NO.15044 OF 2022

A. ...Petitioner
Versus
B & C. ...Respondents

Mr. Ketan A. Dhavale, for the Petitioner.
Mr. Harish Bhatia, for the Respondents.

CORAM : MADHAV J. JAMDAR, J.

DATE : 27th FEBRUARY, 2023 P.C.:

1. Heard Mr. Dhavale, learned counsel appearing for the Petitioner and Mr. Bhatia, learned counsel appearing for the Respondents.
2. In view of the nature of the controversy involved in the Petition, the name of Petitioner shall not be displayed on the website of this Court and the Petitioner be described as (A) and the Respondents be described as (B) and (C).
3. The Petitioner who is the Plaintiff, by the present Writ Petition filed under Article 227 of the Constitution of India is challenging the legality and validity of order dated 18th April, 2019 passed by learned 2nd Joint Civil Judge, Junior Division, Nasik Road, Nasik below Exhibit -5 in Regular Civil Suit No. 14 of 18.wp.15044.22.doc 2018 as well as the Order dated 5 th September, 2022 passed by learned District Judge-9, Nasik in MCA No. 51 of 2019.
4. It is the case of the Petitioner that, she is the daughter of one Prabhakar and Bindarkaur. It is her case that, said mother Bindarkaur was working with said Prabhakar and there was love affair between them. It is her case that, as they developed physical relationship, out of the said relationship, mother Bindarkaur gave

birth to the Petitioner on 24 th November, 1988. It is indicated in the plaint that, the Petitioner is illegitimate child born out of void marriage. When the Petitioner was 4 and half years old, marriage between the Petitioner's mother and Prashant i.e. nephew of said Prabhakar took place on 23th May, 1993 and, thereafter, in the school record, name of said Prashant has been shown as father of the Petitioner.

5. It is the case of the Petitioner that, she is the daughter of said Prabhakar. In the plaint, the Petitioner has raised the contention regarding the manner in which she was taking care of deceased Prabhakar and how she had performed duties of daughter are mentioned. Said Prabhakar passed away on 7th October, 2017. It appears that before that there is a Will dated 10th August 2015 of said Prabhakar by which properties were bequeathed in favour of Respondents, who are nephews of said Prabhakar. It appears that, the properties were not bequeathed in

18.wp.15044.22.doc favour of the Petitioner, who claims to be the daughter of said Prabhakar as well as also not bequeathed in favour of said Prashant who is also one of the nephew of said Prabhakar. It is the case of the Petitioner in the plaint that, age of deceased Prabhakar was 84 years in 2015 when the said alleged will was executed and at that time, he was physically and mentally in bad condition. According to the case of the Petitioner, although Prabhakar is her father, but for the record purpose, the marriage was performed with said Prashant and in the school record name of Prashant is mentioned as the father.

6. It is further significant to note that, the DNA report dated 25th October 2017 shows that "the result of the DNA test indicate that the alleged father cannot be excluded as the biological father of the child. The probability of paternity is 99.99% as compared to an untested, unrelated man of the population." This report is based on the DNA sample/data collected after the death of said Prabhakar who died on 7th October, 2017. The second DNA report shows that the Petitioner is not biological daughter of said Prashant. These two DNA reports on record, prima facie show that the Petitioner is the daughter of Prabhakar whereas she is not the daughter of Prashant. Although Trial Court has disbelieved the said DNA reports, the Appellate Court has accepted the said DNA reports at prima facie stage and held that,

18.wp.15044.22.doc the Petitioner is the daughter of said Prabhakar. The learned Trial Court rejected the Exhibit-5 application mainly by disbelieving the DNA Reports. Admittedly, the marriage between the Petitioner's mother and Prashant took place on 23 th May, 1993 and as per the school record date of birth of the Plaintiff is shown as 24th November, 1988. Thus, it is crystal clear that she was born much prior to the marriage of her mother with Prashant, though as per school record, the name of father is shown as Prashant.

Therefore, rightly the Appellate Court has relied on the DNA report which discloses that the probability of paternity of Prabhakar being father of the Petitioner i.e. Plaintiff is 99.99%. On the

contrary the probability of paternity of Prashant in relation to the Plaintiff is "o". Thus, the Appellate Court prima facie held that, the Plaintiff is biological daughter of deceased Prabhakar. However, the learned Appellate Court held that only on the basis of physical relationship between her mother and late Prabhakar, she cannot claim the properties of late Prabhakar as a legal heir as per law. The Appellate Court held that performance of marriage, whether void or voidable is a condition precedent for a person to establish claim on the property left by his/her biological father.

7. Section 16 of the Hindu Marriage Act, 1955, is regarding legitimacy of children of void and voidable marriages. In the

18.wp.15044.22.doc decision of Parayankandiyal Eravath Kanapraavan Kalliani Amma (Smt) & Ors Vs. K. Devi & Ors 1. the Supreme Court inter alia has held that legitimacy is a matter of status. Illegitimate children are children as are not born either in lawful wedlock, or within a competent time after its determination. It is on account of marriage, valid or void, that children are classified as legitimate or illegitimate. That is to say, the social status of children is determined by the act of their parents. If they have entered into a valid marriage, the children are legitimate; but if the parents commit a folly, as a result of which a child is conceived, such child who comes into existence as an innocent human baby is labelled as illegitimate. Realising this situation, Parliament enacted Section 16 of the Hindu Marriage Act. The object of Section 16 was to protect legitimacy of children born of void or voidable marriages.

8. In the present case, there is material on record to show that, the Petitioner is the daughter of Prabhakar and Bindarkaur. Therefore, there is presumption of either void or voidable marriage. Therefore, at this stage of the Suit, the impugned order by which Exhibit-5 Application is dismissed, as is confirmed by the learned First Appellate Court requires consideration. Therefore, Rule.

1 (1996) 4 SCC 76 [53,55 &59].

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9. The Trial Court rejected the Exh-5 Application by order dated 18th April, 2019. The Appellate Court during the pendency of Misc. Civil Appeal by order dated 4 th July, 2019 directed the Respondents not to create third party interest. The Misc. Civil Appeal was dismissed by order dated 5 th September, 2022. However, this Court granted ad-interim relief by order dated 15 th December, 2022. Thus, the said relief in the form of direction to the Respondent of not creating third party interest is in operation at least since 4th July, 2019.

10. For the above reasons, ad-interim relief granted by order dated 15th December, 2022 in terms of prayer clause (c) will operate as interim order during the pendency of the Writ Petition.

11. It is clarified that the Trial Court can proceed with the suit.

12. It is also clarified that, this order is passed without prejudice to the rights and contentions of the parties and all the contentions of the parties are expressly kept open.

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(MADHAV J. JAMDAR, J.)